

MCT GROUP v WALSH

25CF15585

PLAINTIFF'S MOTION TO COMPEL RESPONSES

Now before the Court is a motion to compel responses to discovery brought MCT Group ("Plaintiff") against David C. Walsh ("Defendant.")

The motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the court day preceding the hearing, no hearing will be held and the tentative ruling shall become the ruling of the court [emphasis in original.]

Failure to include this language in the notice may be a basis for the Court to

deny the motion.

Accordingly, the motion is **DENIED, without prejudice to refile.**

The clerk shall provide notice of this ruling to the parties forthwith. Plaintiff to submit a formal Order and Judgment complying with Rule 3.1312 in conformity with this Ruling.

SANDERS v LUHRASSEBI, et al

25CV48021

PLAINTIFF'S MOTION FOR PROTECTIVE ORDER

Lynne Sanders ("Plaintiff") filed her Complaint arising out of allegations of predatory lending against Loancutters, Inc. dba Evoque Lending ("Evoque"), Mehdi Luhrassebi ("Luhrassebi"), Frank Ortiz ("Ortiz"), Lee Kulick ("Kulick"), and Pasquale Chiechi and Antonia Chichi as Co-Trustees of the Chiechi Family Trust dated February 4, 1993 ("Lenders.")

Now before the Court is Plaintiff's motion for protective order against Special Interrogatories (SROGs) propounded by Evoque. The Court has considered the opposition filed by Evoque but disregards the opposition filed by Lenders, as they are not involved in the discovery in dispute.

I. Factual and Procedural Background

A. Factual Background

Evoque is a residential mortgage and/or private money-lending corporation primarily engaged in commercial and residential lending. (SAC ¶ 23.) Luhrassebi is believed to be the sole officer of Evoque and acts as its CEO, Secretary, CFO, and agent of service of process. (*Id.* ¶ 24.) Kulick is a senior loan consultant for Evoque and is alleged to have acted as an agent for Evoque. (*Id.* ¶ 26.)

Plaintiff has lived in the home located at 632 HWY 4, Murphys, CA 95237 (the "Property") since 1996 (SAC ¶ 2.) In 2022, Plaintiff began to suffer financial difficulties. At that time, however, she did not have a mortgage (having previously paid it entirely off), her credit score was 579, and she had a monthly income of \$1,300.00. (*Id.* ¶ 4.) Based on advertisements, Plaintiff reached out to Evoque which told her that her credit score did not matter and that the loan would fund quickly. (*Ibid.*)